

STATE OF NEW YORK

3246--A

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to certain rental vehicle protections; and to amend chapter 109 of the laws of 2018 amending the general business law relating to certain rental vehicle protections, in relation to the effectiveness thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (c) and (i) of subdivision 1 of section 396-z
2 of the general business law, as amended by chapter 109 of the laws of
3 2018, are amended to read as follows:

4 (c) "Rental vehicle company" means any person or organization, or any
5 subsidiary or affiliate, including a franchisee, in the business of
6 providing [~~rental~~] vehicles to the public without a driver pursuant to
7 an agreement from locations in this state.

8 (i) "Concession agreement" means an agreement, permit or license
9 entered into between an airport operator or its governing entity and
10 rental vehicle company setting forth the terms and conditions under
11 which the rental vehicle company may transact its rental business at
12 such airport. Every airport in the state that receives any state funds
13 shall ensure that all rental vehicle companies operate with a concession
14 agreement.

15 § 2. Paragraph (a) of subdivision 2 of section 396-z of the general
16 business law, as amended by chapter 109 of the laws of 2018, is amended
17 to read as follows:

18 (a) A rental vehicle company shall not charge more than the following
19 amounts per full or partial twenty-four hour rental day for optional
20 vehicle protection:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 (i) nine dollars if the manufacturer's suggested retail price of the
2 rental vehicle is not greater than twenty thousand dollars;

3 (ii) twelve dollars if the manufacturer's suggested retail price of
4 the rental vehicle is greater than twenty thousand dollars but not
5 greater than thirty-five thousand dollars;

6 (iii) fifteen dollars if the manufacturer's suggested retail price of
7 the rental vehicle is greater than thirty-five thousand dollars but not
8 greater than fifty thousand dollars; and

9 (iv) the amount that may be charged for a vehicle with a manufactur-
10 er's suggested value of greater than fifty thousand dollars shall not be
11 subject to a maximum dollar amount but shall be subject to the fair
12 market value as determined by the rental vehicle company.

13 (v) Starting January first, two thousand twenty-six, and each January
14 thereafter, the rate caps set forth in subparagraphs (i), (ii) and (iii)
15 of this paragraph shall be increased based on the increase in the
16 Consumer Price Index for All Urban Consumers (CPI-U) over the previous
17 year as reported by the United States Bureau of Labor Statistics.

18 § 3. Subdivision (a) of section 4 of chapter 109 of the laws of 2018
19 amending the general business law relating to certain rental vehicle
20 protections, as amended by chapter 163 of the laws of 2023, is amended
21 to read as follows:

22 (a) section one of this act shall take effect on the ninetieth day
23 after it shall have become a law [~~and shall expire and be deemed~~
24 ~~repealed June 30, 2028~~];

25 § 4. This act shall take effect immediately.